



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

September 02, 2022

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 13258
(SEVENTH REVISION)

EXPIRATION DATE: 2026-07-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: FIBA Technologies, Inc.
Littleton, MA
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the manufacture, mark, sale and use of non-DOT specification cylinders conforming with all regulations applicable to a DOT Specification 3T cylinder except as specified herein, for the transportation in commerce of the materials authorized by this special permit. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. In accordance with 49 CFR 107.107(a) party status may not be granted to a manufacturing permit. These packaging may be used in accordance with 49 CFR 173.22a.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171- 180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.302a and 173.304a in that non-DOT specification cylinders are not authorized except as specified herein; and § 178.35(c) in that an Independent Inspection Agency was not present at the time of manufacture.
5. BASIS: This special permit is based on the application of FIBA Technologies, Inc. dated July 28, 2022 and submitted in accordance with § 107.109.

Tracking Number: 2022084084

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Gases or mixtures of gases authorized in the HMR to be shipped in DOT 3T specification cylinders	2.1, 2.2, or 2.3	Various	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Packaging prescribed is a non-DOT specification steel cylinder manufactured in stages by both domestic and non-domestic entities and stamped DOT-3T. The non-domestic entity (Dalmine) manufactured the pipe, formed the ends and heat-treated the semi-finished cylinder. Each cylinder must be in conformance with §§ 178.35 and 178.45 except as follows:

§ 178.35(c) *Duties of inspector*. The inspector was not present in the non-domestic manufacturing facility during the first phase of the cylinders' manufacture.

§ 178.35(f)(1)(i) Each cylinder must be stamped "DOT-SP 13258" in lieu of "DOT-3T".

b. TESTING: Each cylinder must be requalified as specified for a DOT-3T cylinder in § 180.209.

c. OPERATIONAL CONTROLS: Cylinders may be manifolded in accordance with § 173.301(g) and securely mounted on a motor vehicle.

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this special permit.

b. A person who is not a holder of this special permit, but receives a package covered by this special permit, may reoffer it for transportation provided no modification

or change is made to the package and it is offered for transportation in conformance with this special permit and the HMR.

- c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
 - d. Each packaging manufactured under the authority of this special permit must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Safety (OHMS) for a specific manufacturing facility.
 - e. A current copy of this special permit must be maintained at each facility where the package is manufactured under this special permit. It must be made available to a DOT representative upon request.
 - f. MARKING: Each motor vehicle which contains cylinders manifolded in accordance with § 173.301(g) must be plainly marked on the curb side near the front, in letters at least 2 inches high on a contrasting background, "DOT-SP 13258."
 - g. The manufacture and use of the cylinders authorized under this special permit is limited to cylinders bearing the serial numbers provided by FIBA Technologies, Inc. and on file with the Office of Hazardous Materials Safety.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, and cargo vessel.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel and motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. **REPORTING REQUIREMENTS:** Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: ae